

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

In this matter, the court finds that Defendant's responses to requests one, and three through seven, are substantially compliant.

The response to request two offers a legitimate objection, in that the request does assume that Defendant in fact applied for the credit account.

Disposition

The court denies Plaintiff's Motion.

The court will file the Order.

**12. 9:00 AM CASE NUMBER: L25-10487
CASE NAME: MIDLAND CREDIT MANAGEMENT INC. VS. THU QUACH
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT
FILED BY:
*TENTATIVE RULING**

Defendant filed a Motion to Set Aside Default Judgment, on 2/27/26, that was originally scheduled for 5/12/26. On that date, this court found Defendant had not provided any notice of the Motion to the Plaintiff, continued the Motion to 7/21/26, and ordered Defendant to provide notice to the Plaintiff.

As of this writing, though the Court Clerk provided notice of the hearing to Plaintiff, there is still no evidence that Defendant has provided any notice of the Motion to Plaintiff.

Disposition

This Motion will be dropped.